

Appendix: Test and Launch Products

Terms of Service of Testing, Demonstration and Premiere Products.

Field | Heading

Document name | FIXON Test and Premier Product Regulations

Version | [?]

Date of transmission to Partner | [?]

Partner | [full name of Partner]

Supplier | FIXON IRYNA MUKOSIA

Mediator | JHB FAMILY sp. z o.o.

Ground of application | FIXON Partner Programme / Partner Card / Strategic Powers Card / Demonstration Center Card

1. The Regulations lay down the rules for sharing, presenting, testing, selling, reporting and accounting of test products and FIXON premiere products transferred to the Partner under the FIXON Partnership Programme.
2. The Regulation applies to products designated as test tools, demonstration products, premier products, pre-prime products, market samples, implementation products and other products delivered to the Partner for testing, presentation, sales validation or limited marketing.
3. The Terms and Conditions shall not transfer to the Partner the ownership of test, premiere, demonstration or exhibition products, unless otherwise stated in a separate document.

Concept | Meaning

Test product | the product transferred to the Partner for demonstration, verification by the client, demonstration use, opinion gathering or sales support without establishing its current sales from the Partner's warehouse.

Release product | the product entered into the FIXON offer for the first time or in a new version, made available to selected partners before full implementation for the standard distribution.

Pre-prime product | a product before full catalogue approval, transmitted for market test, demonstration or feedback.

Demonstration use | short-term use of the product in show or controlled conditions, to present the function of the product without permanently transferring it to the customer.

Client Test | allow the customer to check the product temporarily if this has been authorised by the Supplier or Mediator for the product concerned.

Feedback | feedback on product quality, ergonomics, usability, customer interest, technical reservations, suggestions for changes or sales potential.

1. Test and premiere products shall be transferred to the Partner on the basis of the Transfer Protocol, the Partner Charter, the Strategic Powers Charter, the Demonstration Centre Charter or any other document indicating the scope, number, value and purpose of the products.
 2. The transfer document shall indicate at least the name of the product, the quantity, the catalogue value, the status of the product, the intended use, the place of use, the person responsible for the Partner and any restrictions on the sale, testing or publication of the material.
 3. The Partner undertakes to store the products in a way that protects them from loss, damage, unauthorised use and confusion with commercial products.
 4. Test and premiere products should be indicated in the Partner's records separately from the products sold, the products of the starting warehouse, the products covered by storage support and the products purchased by the Partner.
1. The partner may use test and launch products only for the purposes of their status, in particular for presentation to customers, demonstration of activities, sales tests, sales training, field shows or collection of feedback.
 2. A partner may not use the product in such a way as to cause excessive wear, damage, loss of commercial value, poor quality assessment or misleading the customer about the purpose of the product.
 3. When presenting products, the Partner should communicate their status in accordance with the information provided by FIXON, in particular distinguish between the product available for sale and the test, premiere or pre-premiere product.
 4. The Partner may not declare parameters, guarantees, availability deadlines, production options or trading conditions not confirmed in current FIXON materials or by the Mediator.

1. The test, demonstration or premiere product may be sold to the customer only if its sale has been authorised by the Supplier, Mediator or appropriate programming document.
2. If the sale of the test product is allowed, the settlement shall be based on the price and rules indicated in the Pricelist, Partner Charter, Strategic Powers Charter, Transfer Protocol or individual Supplier Decision.
3. The premier product may be subject to sales restrictions to a particular channel, territory, customer group, Demonstration Centre, Strategic Partner or priority period. The Partner cannot extend this scope without the Supplier's consent.
4. If the test product or launch product is sold without the required consent, the Partner may be charged with its full catalogue value, delivery costs, the costs of reconstructing the exposure and other costs resulting from the unauthorised operation.

1. Information on the premiere, pre-premise or implementation product may be published by Partner only to the extent approved by FIXON.

2. The Partner may not publish photographs, videos, parameters, prices, introduction dates, comparisons with competition or announcements of the availability of the premiere product without prior confirmation of their content by the Supplier or Mediator.
3. Sales communication of the premier product should emphasize its function, application and value for the contractor, without making promises not confirmed by tests, documentation or FIXON materials.
4. If a Partner participates in the creation of a new product, or has made a significant contribution to its development, the scope of priority, primeval exclusivity or market communication is determined by the Strategic Powers Charter or any other individual document.

1. A partner using test or premiere products undertakes to provide the Supplier or the Mediator with feedback from the market, in particular regarding customer interest, sales questions, technical reservations, product usage, performance reactions, potential structural changes and purchasing barriers.

2. Feedback should be provided in documentary form, in particular by email, in a monthly report, a feedback form or another agreed channel.

3. Failure to provide feedback may constitute the basis for limiting Partner's access to test products, premiere products, premierial exclusivity, additional exposure or subsequent product implementations.

1. The normal consumption of the product resulting from proper demonstration use shall not be charged to the Partner if the product has been used in accordance with the intended use and the rules of these Regulations.

2. The partner shall be responsible for damage, loss, destruction, loss or unauthorised transfer of the test product or the premiere if it has been the fault of his or her employees, representatives, offices, subcontractors or persons whom he has enabled to use the product.

3. Test, demonstration or exhibition products damaged or lost by Partner's fault may be settled at 50% of the gross catalogue price, unless the transfer document or individual arrangements provide otherwise.

4. Premiere, pre-prime or specific implementation products may be accounted for at full catalogue value or restoration value if the nature of the product, limited availability or extent of injury justifies this.

1. The supplier or intermediary may call on the Partner to return the test or launch product after completion of the tests, termination of the campaign, withdrawal of the permission, termination of the cooperation, update the version of the product or in any other justified case.

2. The refund shall take place within the time limit indicated in the call, in a condition corresponding to the correct demonstration use, with a set of elements, accessories, packaging and documents, if they have been transmitted.

3. In the absence of a return within the time limit, the Supplier may charge the Partner the value of the product, the transport costs, the costs of restoring the exposure and other reasonable costs resulting from the absence of a return.

Product type | Scope of records/reporting

Test products | name, quantity, storage place, responsible person, use, condition, feedback, damage or

loss.

Prime products | implementation status, scope of presentation, customer interest, sales, queries, reservations, market recommendations.

Demonstration products | number of presentations, events, customers addressed to demonstrations, technical condition, needs to be completed.

Products sold | sales date, quantity, price, discount, customer or channel, settlement, possible complaints.

The Partner shall include test, prime, demonstration and exhibition products in a monthly report or in another form indicated by the Supplier or Mediator if their status, use, sale, loss, damage or return affects settlements, warehouses, exposure or assessment of cooperation.

Lp. | Product name | Status | Quantity | Gross index value | Location / facility | Responsible person |

Date of refund/review | Remarks

1. | [?] | test / premiere / demonstration | [?] | [?] | [?] | [?] | [?] | [?]

2. | [?] | test / premiere / demonstration | [?] | [?] | [?] | [?] | [?] | [?]

3. | [?] | test / premiere / demonstration | [?] | [?] | [?] | [?] | [?] | [?]

The document is forwarded to the Partner under the FIXON Partnership Programme. The Partner may object to the content of the document within 7 days of its delivery. The absence of reservations within that time limit means the acceptance of a document for information and use in the framework of ongoing cooperation. If the Partner raises objections, the Parties shall clarify the content of the document, remove discrepancies or prepare the final agreed version of the document. The final version of the document to which reservations have been made shall be approved by both Parties in the form of personal signatures or electronic signatures accepted by the Parties, unless otherwise agreed by the Parties in document correspondence.

Page | Data | Signature

Supplier | FIXON IRYNA MUKOSIA | date, signature / electronic signature

Mediator | JHB FAMILY sp. z o.o. | date, signature / electronic signature

Partner | [full name of Partner] | date, signature / electronic signature

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